García & Gurney
A Law Corporation

July 21, 2026

Via Email

Melinda Garcia, Esq.
Shareholder
mgarcia@garciagurney.com

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
E-mail: bnn.cdl@gmail.com

RE: Response to Pre-Filing Demand for Settlement

Dear Mr. Newanforbi,

We write in response to your letter dated July 20, 2026, regarding your allegations against The RK Logistics Group, Inc. ("RK Logistics"). After careful review of your claims and the relevant facts, we must respectfully inform you that your assertions are without merit for the reasons outlined below.

1. RK Logistics Was Not Your Employer

Your claim that RK Logistics terminated your employment is factually incorrect. RK Logistics was not your employer at any time. As you acknowledge in your letter, your application and hiring process were facilitated by Randstad US, LLC, a third-party staffing agency. Any employment relationship you may have had was with Randstad, not RK Logistics.

RK Logistics merely engaged Randstad to provide staffing services for certain roles at its facilities. As such, RK Logistics did not and could not terminate your employment, as no employment relationship existed between you and RK Logistics.

2. RK Logistics' Determined That You Were Not Eligible For Placement Based On Your Motor Vehicle Record (MVR) and RK Logistics' Internal Standards.

Your assertion that RK Logistics' decision was based on your inclusion in the California Sex Offender Registry is also incorrect. RK Logistics' determination that you were not eligible for placement was based on your Motor Vehicle Record (MVR), which revealed significant disqualifying factors. Specifically, your MVR disclosed a history of license suspensions and a refusal to submit to a chemical test, among other issues Brendan MVR (002).pdf. These findings rendered you ineligible for the driving position for which you applied, as they directly implicated your ability to safely and lawfully perform the duties required for the role.

3. Compliance with Applicable Laws

RK Logistics complies fully with all applicable federal and state laws, including California Penal Code section 290.46 and the Investigative Consumer Reporting Agencies Act (ICRAA). The InfoMart background check was conducted in accordance with these laws, and RK Logistics' decision was based solely on lawful and relevant criteria, specifically your MVR.

4. No Basis for Liability

Given that RK Logistics was not your employer and that its decision was based on your MVR rather than any prohibited criteria, your claims under Cal Pen Code § 290.46, the ICRAA, and other legal theories are unfounded. RK Logistics denies any liability for the claims you have asserted and reserves all rights to defend itself vigorously should you proceed with litigation.

CONCLUSION

While we understand your disappointment, the facts and applicable law do not support your claims against RK Logistics. Accordingly, we wish you well in your career and will be closing this out for now.

Kind regards,

GARCIA & GURNEY, ALC

Melinda Garcia
Melinda Garcia (Jul 21, 2026 15:56:11 PDT)

Melinda Garcia, Esq.

From: Jack Altares <jack.altares@rklogisticsgroup.com>
Sent: Monday, July 20, 2026 9:00 AM
To: Danyea Watkins
Cc: Camille Evangelista; [DL] Recruiting; Dishon Bryant; Christopher Decena
Subject: RE: Brendan Ngwa Nforbi
Attachments: Brendan MVR.pdf

Hi Danyea,

Please see attached MVR

Best Regards,

Jack Altares
Transportation Manager
RK Logistics Group, Inc.
Mobile: (510) 648-6003
Email: jack.altares@rklogisticsgroup.com

Brokerage: (888) 965-0650
Brokerage Email: brokerage@rklogisticsgroup.com

www.rklogisticsgroup.com
RKLogistics
LOGISTICS FOR INNOVATION

From: Danyea Watkins <danyea.watkins@randstadusa.com>
Sent: Wednesday, July 15, 2026 8:30 AM
To: Jack Altares <jack.altares@rklogisticsgroup.com>
Cc: Camille Evangelista <camille.evangelista@rklogisticsgroup.com>; [DL] Recruiting <recruiting@rklogisticsgroup.com>; Dishon Bryant <dishon.bryant@randstadusa.com>; Christopher Decena <christopher.decena@rklogisticsgroup.com>
Subject: Re: Brendan Ngwa Nforbi

Good morning all,

I reached out and let Brendan know that we are not moving forward with him.

On Wed, Jul 15, 2026 at 8:26 AM Jack Altares <jack.altares@rklogisticsgroup.com> wrote:

> Hi All,

Brendan's MVR came back and unfortunately, we will not be able to move forward with him as a driver for RK.

Best Regards,

Jack Altares

Transportation Manager

RK Logistics Group, Inc.

Mobile: (510) 648-6003

Email: jack.altares@rklogisticsgroup.com

Brokerage: (888) 965-0650

Brokerage Email: brokerage@rklogisticsgroup.com

www.rklogisticsgroup.com

RKLogistics

LOGISTICS FOR INNOVATION

From: Jack Altares
Sent: Tuesday, July 14, 2026 1:06 PM
To: Danyea Watkins <danyea.watkins@randstadusa.com>; Camille Evangelista <camille.evangelista@rklogisticsgroup.com>
Cc: [DL] Recruiting <recruiting@rklogisticsgroup.com>; Dishon Bryant <dishon.bryant@randstadusa.com>; Christopher

Decena <christopher.decena@rklogisticsgroup.com>
Subject: RE: Brendan Ngwa Nforbi

He is on there on Page 2.



Best Regards,

Jack Altares

Transportation Manager

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RKLogistics
LOGISTICS FOR INNOVATION

From: Danyea Watkins <danyea.watkins@randstadusa.com>
Sent: Tuesday, July 14, 2026 1:02 PM
To: Camille Evangelista <camille.evangelista@rklogisticsgroup.com>
Cc: Jack Altares <jack.altares@rklogisticsgroup.com>; [DL] Recruiting <recruiting@rklogisticsgroup.com>; Dishon Bryant <dishon.bryant@randstadusa.com>; Christopher Decena <christopher.decena@rklogisticsgroup.com>
Subject: Re: Brendan Ngwa Nforbi

Hey Camille,

I sent it to him on 7/7 and he said he completed it.

On Tue, Jul 14, 2026 at 12:57 PM Camille Evangelista <camille.evangelista@rklogisticsgroup.com> wrote:

> I don't see him in SambaSafety. Was the MVR link sent to him?
>
> Cheers,

Camille Evangelista

HR Manager

(341)228-3215

From: Jack Altares <jack.altares@rklogisticsgroup.com>
Sent: Tuesday, July 14, 2026 10:12 AM
To: Danyea Watkins <danyea.watkins@randstadusa.com>; [DL] Recruiting <recruiting@rklogisticsgroup.com>; Dishon Bryant <dishon.bryant@randstadusa.com>; Christopher Decena <christopher.decena@rklogisticsgroup.com>
Cc: Camille Evangelista <camille.evangelista@rklogisticsgroup.com>
Subject: RE: Brendan Ngwa Nforbi

Hi Chris and Camille,

May I get an update on this as soon as you are able? We currently do not have any drivers on Swing Shift.

Best Regards,

Jack Altares

Transportation Manager

RK Logistics Group, Inc.

Mobile: (510) 648-6003

Email: jack.altares@rklogisticsgroup.com

Brokerage: (888) 965-0650

Brokerage Email: brokerage@rklogisticsgroup.com

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RKLogistics
LOGISTICS FOR INNOVATION

From: Danyea Watkins <danyea.watkins@randstadusa.com>
Sent: Tuesday, July 14, 2026 8:11 AM
To: [DL] Recruiting <recruiting@rklogisticsgroup.com>; Jack Altares <jack.altares@rklogisticsgroup.com>; Dishon Bryant <dishon.bryant@randstadusa.com>; Christopher Decena <christopher.decena@rklogisticsgroup.com>
Subject: Brendan Ngwa Nforbi

Good morning,

@Christopher Decena can you see what is in Brendan's background and let us know if he is approved to move forward?

Can one of you also check on his MVR please?

Thanks in advance!

--

Danyea Watkins
Randstad Professionals
RIS Site Manager II
Randstad Inhouse Services
T: 510-695-5468
Danyea.watkins@randstadusa.com
http://www.randstadusa.com/

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SambaSafety PO Box 1970 Rancho Cordova, CA 95741-1970

CALIFORNIA Driver Record - W2786 **Order Date: 07/14/2026** **Seq #: 0**

Host Used: Overnight
Rec Type: STANDARD

Bill Code:
Reference:
License: F7953179
Name: NGWANFORBI, BRENDAN NGEHSI
Address:
City, St:

Sex: MALE Weight: 200 lbs. DOB: 09/16/1996 Age: 29
Eyes: BROWN Height: 5'08" Iss Date: 02/01/2024
Hair: BLACK Exp Date: 01/17/2025

Approx. Year Lic. First Issued: 2013 STATUS: SEE BELOW
MVR Score: 15 EXCEPTION

Violations/Convictions Failures To Appear Accidents

*** NONE TO REPORT ***

Suspensions/Revocations

ACTIONS	ORD/DATE	EFF/DATE	CLEAR/DATE	END/DATE	CODE	AVD	DESCRIPTION	NEW SUSP
DISQUALIFICATION	12/03/2024	12/01/2024	11/30/2025		15300A9	CA05	REFUSED TO SUBMIT TO TEST - CMV	
		** MAILED, NOT RETURNED UNCLAIMED						
SUSPENSION	02/11/2025	02/20/2025	05/19/2026		13353	DB31	REFUSAL/FAIL COMPLETE CHEMICAL TEST	
		** VERBAL NOTICE DOCUMENT ON FILE						

License and Permit Information

License: COMMERCIAL Issue: 02/01/2024 Expire: 01/17/2025 Status: INVALID
Class: A ANY COMBINATION OF VEHICLE
License Status Explanation: CURRENT MED EXAM REQD
Endorsement: DOUBLES/TRIPLES
Endorsement: TANK VEHICLE
Restriction: REST 64- E-CLASS A/B-
LIMITED TO VEHICLE WITH
AUTOMATIC TRANSMISSION
Medical Expires: M 12/14/2024

License: IDENTIFICATION Issue: 03/26/2025 Expire: 02/19/2026 Status: EXPIRED
Class: IDENTIFICATION CARD

CDL Medical Information

Self Certificate Type	Issued	Effective	Expiration	Downgraded	Status
			12/14/2024		NOT CERTIFIED

Miscellaneous State Data

PROOF CODE SR22 PROOF REQUIRED
FR PROOF ELIGIBILTY STARTS 05/19/2026 AND TERMINATES 05/19/2029
THIS REPORT DOES NOT GUARANTEE THE ACCURACY OR TRUTHFULNESS OF THE INFORMATION

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NOT VALID FOR COMMERCIAL OPERATION/CURRENT MEDICAL EXAM REPORT REQUIRED

PENDING APPLICATION

DMV INFO: 001

CONFIDENTIAL INFORMATION - TO BE USED AS PER STATE AND FEDERAL LAWS.
MISUSE MAY RESULT IN A CRIMINAL PROSECUTION

END OF REPORT FOR NGWANFORBI, BRENDAN NGEHSI (CONTROL NUMBER: OAA4C7)

GG Ltr to Newanforbi 7.21.2026

Final Audit Report 2026-07-21

Created:	2026-07-21
By:	Karen Tai (ktai@garciagurney.com)
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